



U.S. Department
of Transportation
**Research and
Special Programs
Administration**

400 Seventh St., S.W.
Washington, D.C. 20590

AUG 17 2001

DOT-E 11473
(FIFTH REVISION)

EXPIRATION DATE: February 28, 2003

(FOR RENEWAL, SEE 49 CFR § 107.109.)

1. GRANTEE: Astaris LLC
St. Louis, Missouri
(Former grantee: FMC Corporation)
2. PURPOSE AND LIMITATION:
 - a. This exemption authorizes the transportation in commerce of a Division 4.2 material in DOT Specification 114A340W tank cars equipped with skid protection in place of a protective housing. This exemption provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in development of this exemption only considered the hazards and risks associated with transportation in commerce.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR §§ 173.31(a); 179.100-1; 179.103-3; and 179.103-4 except as specified herein.
5. BASIS: This exemption is based on Astaris LLC's application of March 2, 2001, submitted in accordance with § 107.107 and supplemental information dated March 2 and 14, 2001.

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6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous materials description/proper shipping name	Hazard Class/Division	Identification number	Packing Group
Phosphorus, white dry or Phosphorus, white, under water or Phosphorus in solution or Phosphorus, yellow dry or Phosphorus yellow under water or Phosphorus, yellow, in solution.	4.2	UN1381	I

7. PACKAGING(S) and SAFETY CONTROL MEASURES:

- a. Packaging prescribed are DOT Specification 114A340W tank cars equipped with skids as per the FMC Corporation's drawing SK5-U-7253 in place of the protective housing.
- b. Each tank car operating under the terms of this exemption must be marked "DOT-E 11473" in four inch letters and numerals on a contrasting background above the DOT specification number.

8. SPECIAL PROVISIONS:

- a. A person who is not a holder of this exemption who receives a package covered by this exemption may reoffer it for transportation provided no modification or change is made to the package or its contents and it is reoffered for transportation in conformance with this exemption and the HMR.
- b. A current copy of this exemption must be maintained at each facility where the package is offered or reoffered for transportation.

9. MODES OF TRANSPORTATION AUTHORIZED: Rail freight.

10. MODAL REQUIREMENTS:

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The Federal Railroad Administration is to be notified if any unusual incident occurs, such as derailment or exterior tank car damage, during the movement by contacting the:

Federal Railroad Administration
Office of Safety Assurance and Compliance
RRS-12, Mail Stop 25
1120 Vermont, N.W.
Washington, D.C. 20590
(202) 493-6248 or 493-6229

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS:

The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (Sections 171.15 and 171.16

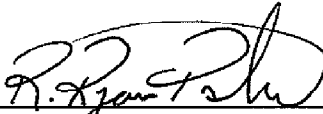
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apply to any activity undertaken under the authority of this exemption.) In addition, the holder of this exemption must inform the AAHMS, in writing, of any incidents involving the package and shipments made under the terms of this exemption.

Issued in Washington, D.C.:



Robert A. McGuire
For Associate Administrator
for Hazardous Materials Safety

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(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

Copies of exemptions may be obtained from the AAHMS, U.S. Department of Transportation, 400 7th Street, S.W., Washington, DC 20590-0001, Attention: Records Center, 202-366-5046.

PO: sln